

Munitions Open Solicitation for Advanced and Innovative Capabilities

W50RAJ-26-S-A001

March 20, 2026



Issuing Agency: Portfolio Acquisition Executive (PAE) Fires

Agencies Capable of Issuing Contracts/Agreements: Army Contracting Command – Redstone or any other contracting activity providing direct support to PAE Fires

Period of Availability: This open solicitation will remain open in perpetuity until canceled by the U.S. Army. Call for Solutions or Area of Interest announcements will specify individual response time and requirements.

I. General Information

For release is the Munitions Open Solicitation for Advanced and Innovative Capabilities dated March 20, 2026. PAE Fires, as one of the Army's core modernization enterprises, is responsible for shaping, integrating, and delivering the Army's most critical fires capabilities – today and into the future. This initiative is focused on modernizing the Army's Organic Industrial Base by actively seeking innovative technologies to rapidly and efficiently research, develop, prototype, test, evaluate, procure, and/or field critical enabling advanced fires capabilities that address near-term and mid-term threats. This solicitation aims to provide the Army with access to innovative solutions to maintain a competitive edge over adversaries while enabling flexible business arrangements with the industrial base to implement the National Defense Strategy and Army Vision.

The Army may select vendors whose solutions demonstrate the greatest potential to achieve the Army's missions.

ACC-RSA is maximizing existing authorities by publishing this open solicitation combining any single authority or a combination of the authorities below:

- Federal Acquisition Regulation (FAR) 6.102(d)(2) – Other Competitive Procedures
- FAR 35.016, Broad Agency Announcement (BAA)
- Defense Federal Acquisition Regulation (DFARS) 235.016 Broad Agency Announcement/DFARS 235.006-71 – Competition
- 10 U.S.C. 4021 – Research projects: transactions other than contracts and grants
- 10 U.S.C. 4022 – Authority for the Department of Defense (DoD) to carry out certain prototype projects
- 10 U.S.C. 4023 – Procurement for experimental purposes
- 10 U.S.C. 3458 – Authority to acquire innovative commercial products and commercial services using general solicitation competitive procedures/DFARS 212.70 – Defense Commercial Solutions Opening
- Employee Stock Ownership Pilot (ESOP) Program authorized by Section 874 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2022, as amended by Section 872 of the NDAA for FY2024

Companies are informed that ONLY a warranted Government Contracting/Agreements Officer (not a Contracting Officer Representative or other personnel) may contractually bind the Government. The Government shall not be liable to pay for work performed by a Company unless a warranted Contracting/Agreements Officer has signed an agreement in writing agreeing that

the Government shall pay. The Government does not fund preparation of solution briefs/proposals, or support work efforts or tasks that are inferred from discussions with technical project officers.

II. Fires Example Areas

This open solicitation covers any of the following example areas. These examples areas shall be viewed as suggestive, rather than limiting and are not reflective of the ONLY areas or in any priority of order.

- Advanced radar and sensor capabilities
- Advanced electronic countermeasures
- Versatile air and ground launched weapon systems
- Air and missile defense effectors
- Mission command and fire control systems
- Long-range precision fires
- Hypersonic weapons
- Directed energy
- Counter-Unmanned Aircraft Systems
- Munitions and Modular Munition launchers
- Advanced Seekers
- Mobile Tactical Cannon
- Advanced energetics and propulsion
- Digital Transformation and Simulation, including Artificial Intelligence/Machine Learning
- Launched/Lethal Effects
- Demonstration, Testing and Independent Verification & Validation support

III. Open Solicitation Procedures

There are two methods for responding under this open solicitation: (1) Fires Capability Gap submissions and (2) Call for Solutions submissions.

- Fires Capability Gap (FCG)

Provides a flexible and open-ended opportunity for industry partners to submit solutions briefs addressing any of the identified areas in Section II. This aspect of the Open Solicitation is designed to identify and bridge gaps in mission-critical capabilities by inviting innovative solutions from the private sector. The purpose is to encourage a wide range of responses that can enhance and support the example areas, fostering collaboration and leveraging cutting-edge technologies and methodologies to meet evolving operational needs.

Companies shall follow the procedures in Enclosure 1 when providing a submission to FCG.

The FCG award procedures will utilize up to three (3) phases:

1. Solution Brief
2. Live Pitch and/or Demo (unless bypassed)
3. Solution Proposal

Enclosure 1 outlines the submission requirements/content, evaluation criteria and selection process required for each Phase. Fires Capability Gap submissions will be awardable for a period of up to 18 months after submission of the Solution Brief or Solution Proposal, whichever is later.

- **Call for Solutions**

Provides an opportunity for industry partners to submit innovative solutions in response to Government issued Call for Solutions under any of the Fires example areas in Section II. Calls for Solutions aim to pinpoint and address critical gaps in essential capabilities by welcoming creative proposals from private sector entities.

Call for Solutions will be released and posted via SAM.gov as an amendment under this solicitation and will designate whether it is an announcement under CSO, BAA, or other authority as listed in Section I. The Call for Solutions posting will include all relevant submission requirements and evaluation procedures and shall govern the process for evaluations and award. Submission requirements may vary in phases and may take the form of solution briefs, white papers, demonstrations, live pitches, etc. Call for Solutions are independent from the FCG procedures discussed above. The FCG procedures do not apply to individual Call for Solutions.

Calls for Solutions will be broadly written to maximize efficiency, innovation and application when approaching problem sets and to allow for maximum participation from commercial vendors who may not be familiar with submitting proposals to Government solicitations. The Government may post Calls for Solutions at any time. Interested companies are encouraged to frequently check SAM.gov for updates to this solicitation and new Calls for Solutions.

IV. Awards

Upon selectable review of the Request for Solution Proposal (RSP) under FCG and Calls for Solution procedures and subject to the availability of funds, the Government may choose to make an award(s). The Government reserves the right to select and award the instrument (i.e. contract, agreement, etc.) best suited for the nature of the

work proposed. Individual Calls for Solutions may ask Companies to recommend the best contract/agreement type to allow for the best solution.

The Contracting/Agreements Officer reserves the right to negotiate directly with the Company on the terms and conditions prior to execution of the resulting award instrument, including payment terms, and will execute the instrument on behalf of the Government. All payment obligations of the Government shall be subject to receiving appropriations from Congress for the purpose, time, and amount of the obligation. Only a Contracting or Agreements Officer has the authority to enter into, or modify, a binding instrument on behalf of the United States Government.

In order to receive an award, the following must be met:

- a. Companies shall have a Unique Entity ID (UEI) number and must register in the System for Award Management (SAM) prior to receiving an instrument. If a Company does not possess a valid and active SAM registration, Companies are advised to commence SAM registration upon receipt of an RSP. Companies are required to maintain registration in SAM throughout the period of performance of the instrument and during any subsequent follow-on award.
- b. Companies shall also register in the prescribed government invoicing system (Wide Area Work Flow: <https://wawf.eb.mil/xhtml/unauth/registration/notice.xhtml>).
- c. Companies shall represent their business size and status as required in this solicitation.
- d. Companies shall be determined to be responsible by the Contracting/Agreements Officer and must not be suspended or debarred from award by the Federal Government nor be prohibited by Presidential Executive Order and/or law from receiving an award.
- e. Any actual or potential OCIs shall be identified to KO/AO prior to award.

V. Iterative Prototyping

Iterative prototyping is a development methodology where a prototype is created, tested, and refined through multiple cycles, incorporating user feedback and improvements in each iteration ensuring the final product meets user requirements and expectations. Another transaction (OT) for a prototype awarded against this open solicitation shall allow for an iterative prototyping process and will be indicated with the RSP.

An iterative prototyping process will allow the government to modify, by mutual agreement, the scope of a prototype contract or OT to allow for the adaptation and modification of the technology being prototyped to meet additional unique and

discrete purposes/mission sets. The sequential prototype iterations may result in separate phased prototype awards rather than a modification of the original prototype award.

These additional unique and discrete purposes/mission sets can be generated by the government.

VI. Successful Completion of Prototype

A prototype is complete upon the written determination of the appropriate approving official (program manager and Contracting/Agreements Officer) for the matter in question that the efforts conducted under a prototype contract or OT: (1) met the key technical goals of a project; (2) met the metrics incorporated into the prototype contract or OT; or (3) accomplished a particularly favorable or unexpected result that justifies the transition to a production contract or OT. Furthermore, prior to successful completion of a prototype under this open solicitation, the government can transition any complete and substantive aspect of the prototype determined to provide utility into production, while remaining aspects of the prototype have yet to be completed.

VII. Follow-on Production of a Prototype

After award of a prototype using either the CSO or BAA methods and corresponding authority, the Government and Company may negotiate a follow-on contract or OT for production or solution integration with or without further competition. Any solution/concept successfully proven through a prototype contract or OT can be transitioned into a production award. The Government reserves the right to award a follow-on award before the prototype is complete, under competitive procedures as provided in 10 U.S.C. 4022. The Government reserves the right to extend performance of all, some, or none of the selected solutions/concepts and will be made based on the availability of government funds.

VIII. Non-Government Advisors

Non-Government advisors may be used in support of the evaluation of Solution Briefs, Pitches and during the Request for Solution Proposal phase and negotiations under the FCG procedures or in Call for Solutions. Non-Government advisors will have signed non-disclosure agreements (NDAs) with the Government. The Company understands that the Government may share proprietary Company information with non-Government personnel for evaluation and administrative purposes only. If non-Government advisors are used during evaluations, the Government will provide notice of the non-Government advisors in the individual Call and/or at the different phases of the FCG procedures, as applicable. With respect to FCG Solution Brief submissions, the Government cannot anticipate when Companies plan to submit, therefore it is incumbent upon the Company to reach out

to the Government to confirm if Non-Government Advisors will be utilized. By submitting information to the Government, the Company further understands that it had an opportunity to enter into a NDA directly with the Non-Government Advisor and therefore waives any and all claims against the Government for any disclosures of proprietary information by the non-Government personnel. Such NDAs are the responsibility of the Company, and the Government shall not be a party to them.

Companies shall provide a copy of the signed NDAs to the Government with submissions.

The Government understands that information provided in response to this open solicitation is presented in confidence and may contain trade secret or commercial or financial information, and it agrees to protect such information from unauthorized disclosure to the maximum extent permitted or required by Law, to include:

- a. 18 U.S.C. 1905 (Trade Secrets Act);
- b. 18 U.S.C. 1831 et seq. (Economic Espionage Act);
- c. 5 U.S.C. 552(b)(4) (Freedom of Information Act);
- d. Executive Order 12600 (Pre-disclosure Notification Procedures for Confidential Commercial Information); and,
- e. Any other statute, regulation, or requirement applicable to Government employees.

Companies shall label any information they want protected as confidential. Submissions will not be returned. The original copy of each submission received will be retained by the Army and all other non-required copies destroyed.

IX. Contact Information

FCG solution brief submissions as detailed in Section III shall be submitted to the email addresses listed below. Please include the Fires Example Area in the subject of the email submission.

usarmy.redstone.pae-fires.list.open-solicitations@army.mil

Call for Solutions brief submissions shall be submitted in accordance with the instructions and points of contact provided in the Call. General questions surrounding this open solicitation shall be submitted to: usarmy.redstone.pae-fires.list.open-solicitations@army.mil

Enclosure 1

Fires Capability Gap (FCG) Procedures

I. FCG Solicitation Procedures

The below sections outline the competitive procedures to submit an FCG response to a Fires Example Area. These procedures do not apply to Calls for Solutions, which are governed by their own process. This enclosure governs the procedures for all CSO and BAA submissions. FCG Solution Brief submissions will be accepted during the period of availability noted on the Munitions Open Solicitation for Advanced and Innovative Capabilities cover page.

Any awards resulting from these procedures are as follows:

CSO – Fixed Price and Fixed Price Incentive awards either using FAR Part 12 Acquisition of Commercial Items or Other Transaction (OT) authorities.

BAA – Cost type, Fixed Price, and other contract types using FAR-based awards and OT authorities.

Procurement for Experimental purposes – Cost type, Fixed Price, and other contract types or agreements.

If the Government does not respond to a Company's FCG submission, then the Government may retain the Company's submission and it will be awardable for a period of 18 months from submission of the Solution Brief or Solution Proposal, whichever is later.

II. FCG Phases Overview

The FCG solicitation portion may consist of up to three (3) phases: Solution Brief, Live Pitch and/or Demo, and full Solution Proposal. Phase 1 shall follow the procedures within Section III. Procedures for Phase 2 and/or Phase 3 will be governed by the accepting mission partner and contracting activity and provided within the invitation for its respective Phase.

Phase 1 – Solution Brief

Solution Briefs submitted in response to a Fires Example Area shall be submitted as specified in Section III.A. The Government will evaluate Solution Briefs against the stated criteria stated in Section III.B. The Government will not pay companies for the cost(s) associated with Solution Brief submissions.

Phase 2 – Live Pitch and/or Demo Session (unless bypassed)

Companies whose Solution Briefs are selected for further consideration may be invited to provide a live pitch and/or demo session. The Government reserves the right to limit the number of Companies invited to pitch. As such, a Company's solution may be selected for further consideration, however not invited to pitch. The Government will not pay Companies for cost(s) associated with live pitches and/or demos, unless otherwise stipulated. The Government reserves the right to record live pitches. The Government also reserves the right to bypass Phase 2 in its entirety.

Phase 3 – Solution Proposal

Companies who are selected for further consideration may be invited to submit a full solution proposal. All awards are subject to the availability of funding. The Government will not pay Companies for costs associated with the Solution Proposal (e.g. proposal development, negotiations) in Phase 3, unless otherwise stipulated.

A. Guidelines for Solution Briefs, Live Pitches, and Solution Proposals

- i. Unnecessarily elaborate brochures or proposals are not desired.
- ii. When applicable, use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.
- iii. Companies may submit multiple Solution Briefs in response to Fires Example Areas, if each submission represents a separate and distinct concept. Individual Solution Briefs may only address one (1) concept in response to a Fires Example Area.
- iv. The period of performance will be included in each award.
- v. Technical data with military application may require appropriate approval, authorization, or license with lawful exportation.
- vi. All Solution Briefs, Live Pitches, and Solution Proposals shall be unclassified. Those containing company proprietary data that is not to be disclosed to the public for any purpose or used by the Government except for evaluation purposes shall include the following sentences on the cover page:

“This [select one: Solution Brief, Live Pitch, or Solution Proposal] includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used, or disclosed – in whole or in part – for any purpose other than to evaluate this submission. If, however, an agreement or contract is awarded to this Company as a result of – or in connection with – the submission of this data, the Government shall have the right to duplicate,

use, or disclose the data to the extent agreed upon by both parties in the resulting Agreement. This restriction does not limit the Government's right to use the information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]."

Each restricted data sheet shall be marked as follows:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal."

- vii. FCG Solution Briefs shall be submitted electronically to the email address listed in the open solicitation.
- viii. Submissions sent through other channels than required or after this open solicitation response period has ended, may not be considered, reviewed, or evaluated.
- ix. Entities submitting Solution Briefs that are not chosen for the Phase 2 – Live Pitch and/or Demo or Phase 3 – Solution Proposal may be notified in writing as soon as practicable.
- x. Identification of Intellectual Property (IP) and restrictions. Solution Briefs shall identify (1) any patent involved in the effort and any royalty associated with the patent; and (2) any restriction on the Government's rights (e.g. Data rights) in using, disclosing, reproducing, and/or modifying technical data, computer software, and/or non-technical data (e.g. Business/financial/administrative data and AI/ML training data) involved in the effort.

III. Phase 1 – Solution Brief

A. Phase 1 – Solution Brief Content

Solution Briefs shall not exceed five (5) written pages using 12-point font, or alternatively, Solution Briefs may take the form of briefing slides which shall not exceed fifteen (15) slides. Submissions shall be submitted as one (1) document in Adobe PDF file format. The Government will not consider inserted textboxes/pop-ups or internet links to additional information as part of the Solution Brief and will not consider such information in its evaluation of submissions. Solution Briefs are intended to be clear, concise and succinct submissions. To the extent possible, keep file sizes to a minimum.

The Government anticipates evaluating compliant solution briefs on a quarterly basis.

Solution Briefs shall include the following at a minimum:

- i. Title Page (does not count against the page limit)
 - a. Company Name, Title, Date, Point of Contact Name, E-mail Address, Phone, and Address. If registered in SAM.gov, include the Commercial and Government Entity (CAGE) code, and Unique Entity Identification (UEI) code.
 - b. Specifically identify the Fires Example Area for which the Solution Brief is submitted and include the relevant Program/Government POC, if known.
 - c. Company shall propose the intended award instrument, which shall be bound to the applicable laws and regulations. The Government will determine and approve the resultant award instrument.
 - d. Identify proposed NAICS code and title based on appropriateness and employee small business size standard under 13 CFR Part 121 (applicable to FAR proposed instruments only).
- ii. Executive Summary (one page limit; counts toward page limit)
 - a. Provide an executive summary of the solution.
- iii. High-Level Solution/Concept (counts toward page limit)
 - a. Describe the unique technical aspects of your solution/concept and how it is relevant and important to the respective Fires Example Area.
 - b. Describe how the solution/concept is innovative and fulfills requirements.
 - c. Describe how the proposed solution/concept solves a capability gap/problem and/or provides potential innovative technological advancements.
 - d. Describe the solution/concept capabilities and scalability.
 - e. Describe how the proposed technical approach is feasible, achievable, and supported by a technical team that has the expertise and experience to accomplish the proposed solution/concept.
 - f. If CSO, identify whether the proposed solution/concept includes a pilot or demonstration of existing commercial technology (identified as commercially available and viable technology), or the development of technology for potential defense application. Identify the DoD Technical Readiness Level (TRL). If development or adaptation is proposed,

discuss the suggested path to maturity. Identify aspects which may be considered proprietary.

- g. If BAA, identify whether the proposed solution/concept includes a pilot or demonstration for the development of technology for potential defense application. Identify the DoD Technical Readiness Level (TRL). If development or adaptation is proposed, identify at what phase the adaptation is (1) basic research, (2) applied research, (3) advanced technology development, or (4) advanced component development, prototypes and incidental production AND discuss the suggested path to maturity. Identify aspects which may be considered proprietary.
- iv. ROM/Schedule (two page limit; does not count toward the page limit)
 - a. Submit one (1) Rough Order of Magnitude (ROM) and one (1) notional schedule demonstrating the solution/concept timeline milestones to maturity. Companies may use assumptions in the development of the ROM and shall annotate the assumptions within the ROM tab.
- v. Company Viability (counts toward page limit)
 - a. Provide a brief overview of the company. Provide a summary of current fundraising to date or a summary of the top line (gross sales and revenues).
 - b. If CSO, provide a summary of product/solution commercialization and go-to-market strategy.
- vi. Affirmation of Business Status Certification (does not count against page limit)
 - a. Include Appendix A for each company that is a participant of the solution/concept. (e.g. Certificate of Status)
- vii. Intellectual Property Statement/Agreement/Disclosures (does not count against page limit)
 - a. As needed, include a separate disclosure for each company that is a participant of the solution/concept.

B. Phase 1 – Solution Brief Compliance Check

The Government will first review the Company's Solution Brief to ensure compliance with the submission requirements of III.A. The compliance check is a prerequisite to the Technical Evaluation of content in Section III.C. Solution Briefs not in compliance with submission requirements may be excluded from further evaluation. If excluded

from further evaluation, the Government will notify the Company as soon as practicable.

C. Phase 1 – Solution Brief Basis of Evaluation

Compliant solution briefs submitted in response to a Fires Example Area will be evaluated against the below criteria. The Government reserves the right to use external market research in the evaluation of a Company's viability. In the event multiple submissions are received for the same element or aspect of a Fires Example Area prior to each quarterly evaluation (e.g. for similar missile capabilities to address similar capability gaps; for sensors to address the same or similar capability gaps; etc.), the Government reserves the right to select all, some, or none of the solution submissions submitted in response to this open solicitation and may result in more than one award or no awards.

The Government intends to evaluate properly submitted and compliant Solution Briefs to determine their potential to meet the Government's needs and any particular merit or value they present, using the evaluation criteria below.

- i. **Technical Merit:** The Government will evaluate the Technical Merit of a Company's Solution Brief. Technical merit is defined as having relevance to the Fires Example Area, innovation, solves a capability gap and/or provides innovative technological advancements. The technical approach shall demonstrate the ability to scale and be determined feasible and achievable. In addition, the Government finds the technical approach and/or underlying technology to be a compelling solution.
- ii. **Schedule:** The Government will evaluate the feasibility of the Company's proposed solution/concept project schedule and maturity path.
- iii. **Viability:** The Government will evaluate the submitted company overview, and if applicable, summary of product/solution commercialization and market strategy for viability.

D. Phase 1 – Solution Brief Selection Process

Based on the evaluation, the Solution Brief will be categorized as Selected for Further Consideration or Not Selected for Further Consideration. Selection into the next Phase will be based on the criteria listed above, Government need, and funding availability.

Selected for Further Consideration: The submitted Solution Brief has been determined to be of technical merit, represents a feasible

schedule, and the Company is considered viable. Please note, the Government may determine a Solution Brief to be Selected for Further Consideration but there is no current Government need, manpower and/or funding available and will retain the solution for further consideration up to 18 months after submission of the Solution Brief or after Solution Proposal, whichever is later.

Not Selected for Further Consideration: The submitted Solution Brief does not represent the necessary degree of technical merit, a feasible schedule, and/or Company viability to warrant further consideration.

Solution Briefs selected for further consideration may lead to near-term invitations to Phase 2, near-term invitations to Phase 3, or may be retained for future consideration based on current mission requirements or funding. The Government anticipates that Fires Example Areas may routinely receive more Solution Briefs than resources to award. All compliant Solution Brief submissions will be fairly evaluated; however, in cases where the Army receives Solution Briefs focused on the same requirements within a similar time period, only the most compelling solutions will be invited to Phase 2 and/or Phase 3. The Government reserves the right to limit the number of Companies invited to Phase 2 and/or Phase 3. As such, a Company's solution may be evaluated as selected for further consideration but retained for future consideration. Solution Briefs whether selected for further consideration or not selected for further consideration for Phase 2 and/or Phase 3 will be notified in writing as soon as practicable and will include selection outcome and feedback.

Companies whose Solution Brief is not selected for further consideration may resubmit a solution brief; however, are cautioned that if the new solution brief is identical or substantially identical without material improvement to the first submission will not be evaluated.

Repeated submissions of non-compliant, incoherent or severely inadequate solution briefs may result in the Government rejecting future solution briefs from the same Company (or affiliated Companies) for progressively longer periods of time, starting with an initial suspension from consideration period of 90 days.

IV - PHASE 2 AND/OR PHASE 3

Phase 2 and/or Phase 3 submission requirements and evaluation criteria will be outlined within the invitation into the respective Phase.

V – AWARDS

See the Munitions Open Solicitation for Advanced and Innovative Capabilities Section IV.

VI - ADDITIONAL INFORMATION

A. Security Clearances

If awarded a contract or an OT under the procedures of this open solicitation, the Company will be responsible for providing personnel with appropriate security clearances to ensure compliance with Government security regulations. The Company shall fully cooperate on all security checks and investigations by furnishing requested information to verify the Company employee's eligibility for any required clearance.

The Company's proposed solution (e.g., data, integration with supporting DoD Infrastructure, architecture) will determine the personnel security clearance and/or facility clearance requirements for the prototype effort. The Government will provide additional details regarding the personnel security clearance and/or facility clearance requirements in the appropriate Phase.

B. Security Requirements and Classification

Responses under this open solicitation shall be unclassified. Any security requirements and security classification specifications will be determined and requested at the appropriate phase in Section III above. If the Company requires classification then please contact the email identified in Munitions Open Solicitation for Advanced and Innovative Capabilities Base Document, Section IX - Contact Information.

C. Data Storage

To protect against seizure and improper use by non-United States (U.S.) persons and government entities, all data stored and processed by/for the DoD must reside in a facility under the exclusive legal jurisdiction of the U.S. If awarded a contract or OT under the procedures of this open solicitation, the Company shall be required to maintain all government data that is not physically located on DoD premises within the 50 States, the District of Columbia, and outlying areas of the U.S., unless otherwise authorized by the responsible Government, as described in DoD Instruction (DoDI) 8510.01, *Risk Management Framework for DoD Systems*, and the DoD Cloud Computing Security Requirements Guide.

During the performance of a contract or OT, if Government data is co-located with the non-Government data, the Company shall be required to isolate the Government data into an environment where it may be reviewed, scanned, or forensically evaluated in a secure space with access limited to authorized Government personnel identified by the Contracting or Agreements Officer, and without the Company's involvement. The Company shall be required to record all physical

access to the cloud storage facilities and all logical access to the Government data. This may include the entrant's name, role, purpose, account identification, entry and exit time. The Company shall be required to provide such records to the Contracting/Agreements Officer or designee in accordance with the agreement or upon request to comply with federal authorities.

D. Company Incurred Evaluation Costs

The Government will not reimburse Companies for any costs incurred while participating in Phases 1 through 3 of the open solicitation process.

Additionally, the Government will not consider the costs associated with participating in Phases 1 through 3 as allowable charges and such costs shall not be included within the ROM or any pricing information.

E. Export Controls

Research findings and technology developments arising from a resulting prototype OT may constitute a significant enhancement to the national defense and to the economic vitality of the United States. As such, in the conduct of all work related to this effort, the recipient shall be required to comply strictly with the Arms Export Control Act, 22 U.S.C.

§ 2751-2794, including the International Traffic in Arms Regulation (ITAR), 22 C.F.R. § 120 et seq.; the Export Administration Act, 50 U.S.C. app. § 2401-2420; the

National Industrial Security Program Operating Manual, 32 CFR § 117; and the Department of Commerce Export Regulation, 15 CFR § 730-774.

F. Congressional Notification

IAW PGI 212.7005 Congressional notification, notification to the congressional defense committees shall be made no later than 45 days after the award of a contract valued at more than \$100 million resulting from a CSO. The notification shall include:

- (1) A description of the innovative commercial product, commercial service, or technology acquired;
- (2) A description of the requirement, capability gap, or potential technological advancement with respect to which the innovative commercial product, commercial service, or technology acquired provides a solution or a potential new capability;
- (3) The contract award amount; and
- (4) The contractor awarded the contract.

G. Cost-Share

Cost-sharing contracts will also be considered for award. A cost-sharing contract is a cost-reimbursement contract where the Contractor receives no fee and is reimbursed only for an agreed upon portion of its allowable cost. It may be used when the Contractor agrees to absorb a portion of the cost in the expectation of substantial compensating benefits. The purpose of cost-sharing is to encourage contractors to contribute to R&D projects and to ensure the efficient use of resources. To use this type of contract, the Contractor's accounting system must be adequate for determining costs applicable to the contract. Appropriate Government surveillance during performance will provide reasonable assurance that efficient methods and cost controls are used.

H. Payment Obligations

All payment obligations of the Government shall be subject to receiving appropriations from Congress for the purpose, time, and amount of the obligation.

I. Amendments

All Fires Capability Gap submissions pending evaluation will be evaluated against the most recent amended Enclosure 1 on SAM.gov.

APPENDIX A

AFFIRMATION OF BUSINESS STATUS CERTIFICATION (ABSC)

Every significant participating entity shall complete the following table and provide a signature representing its certification.

***Legal Entity Name**

Industry Size Standard for NAICS

☐ Large ☐ Small Socio Economic Status:

***SAM UEI No.**

***CAGE Code**

***Tax Identification No.**

***Active SAM Registration**

Yes ☐ **No** ☐ **Expiration Date:**

Address 1

Address 2

City/State/Zip

POC Name/Title

POC Phone/e-mail

* This information is required for the entity serving as the Prime/Lead/Principal and as applicable for all other legal entities. Submit one (1) Form per entity.

The Entity named above represents that it is (check one of the following boxes):

☐ **A Nontraditional Defense Contractor (NDC)** – Defined in 10 U.S.C. 3014:

Nontraditional Defense Contractor - means an entity that is not currently performing and has not performed, for at least the one- year period preceding the solicitation of sources by the Department of Defense for the procurement or transaction, any contract or subcontract for the Department of Defense that is subject to full coverage under the cost accounting standards prescribed pursuant to section 1502 of title 41 and the regulations implementing such section. (see 10 U.S.C. 2302(9)).

☐ **A Nonprofit Research Institution (NRI)** – Defined in 15 U.S.C. 3703 Definitions - the term (3) "Nonprofit institution", means an organization owned and operated exclusively for scientific or educational purposes, no part of the net earnings of which inures to the benefit of any private shareholder or individual. It includes federally funded research and development centers, as identified by the National Scientific Foundation in accordance with the Government wide Federal Acquisition Regulation issued in accordance with section 1303(a)(1) of title 41 (or any successor regulation thereto).

☐ **A Traditional Defense Contractor** – A Traditional Defense Contractor is an entity that does not meet the definition of a Nontraditional Defense Contractor (NDC).

The undersigned hereby certifies that the representations made herein are accurate and true regarding the entity identified above. I authorize my electronic signature to carry the same weight and legal effect as my written signature.

Signature	
Printed Name	
Title	
Date	

In addition to submitting the Affirmation of Business Status for all entity participants, the Prime Offeror [or Sole Offeror] shall submit an explanation on how the Prime [or Sole Offeror] is satisfying the requirements under **10 USC 4022(b)(d) Appropriate Use of Authority**.- (1) (conditions is met).

The Prime Offer [or Sole Offeror] explanation provided below (text box) contains language supporting one of the following three areas (**check one of the following boxes**):

☐ **At least one Nontraditional Defense Contractor (NDC) or Nonprofit Research Institution (NRI)** is participating to a ***significant extent*** in the prototype project. **If checked:** Provide an explanation of the effort and the significance of the NDC or NRI's contribution that supports at least one of the following factors (Ref OTA Guide Glossary, "Significant Extent" page 37) in the box below:

- a) Supplying a new key technology, product or process.
- b) Supplying a novel application or approach to an existing technology, product or process.
- c) Provides a material increase in the performance, efficiency, quality or versatility of a key technology, product or process.
- d) Accomplishes a significant amount of the prototype project.
- e) Causes a material reduction in the cost or schedule of the prototype project.
- f) Provides for a material increase in performance of the prototype project.
- g) Provides additional capability beyond those described above necessary for this effort.

Provide a total estimated cost and percentage of the NDC or NRI associated with the proposal. (Note: While cost is an indicator for the level of NDC or NRI participation, there is no specific cost threshold required.)

☐ **All significant participants** in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under section 9 of the Small Business Act (15 U.S.C. 638)) or nontraditional defense contractors.

☐ **At least one third of the total cost** of the prototype project is to be paid out of funds provided by sources other than other than the Federal Government. If selected, the Cost Share details shall be provided with the ROM/Cost/Price submission.

Prime Offeror - Explanation for 10 USC 4022(b)(d) participating to a significant extent:

[Replace Sample Text - XYZ Corp] has teamed with several Nontraditional Defense Contractors that collectively are contributing to a significant extent as summarized below:

Supplying a novel application or approach to an existing technology, product or process:

a) New key technology, product or process: [LMNO LLC will provide]

b) Supplying a novel application or process: [1234 Inc will provide]

c) Material increase in the performance, efficiency, quality or versatility:

d) Accomplishes a significant amount of the prototype project:

e) Causes a material reduction in the cost or schedule of the prototype project:

f) Provides for a material increase in performance of the prototype project:

g) Provides additional capability beyond those described above necessary for this effort. [ABC will provide Cloud Services at scale] and

[EFG LLC will provide software that will.]

Total estimated cost and percentage of NDC contribution to the Prototype is [\$XX,XXX] and [XX]%.